

TENTATIVE RULINGS

LAW & MOTION

DEPT C25

Judge Gassia Apkarian

The court will hear oral argument on all matters at the time noticed for the hearing, **unless the Court has stated that the matter is off calendar.** Do not call the department to verify if you should appear or not. Please read below for the information. **If you would prefer to submit to the Court's tentative without oral argument, advise all counsel first to find out if all parties are submitting, and then the moving party is to telephone the clerk at (657)622-5225 with the status of all parties.** If the moving party has submitted on the matter and there are no appearances by any party at the hearing, the tentative ruling will be the final ruling. Rulings are normally posted on the Internet by **12:00 p.m.** the day before the hearing. Generally, motions will not be continued or taken off the calendar after the tentative has been posted. **The moving party shall give notice of the ruling.**

August 18, 2026

10:00 AM

If you want a transcript, you must provide your own court reporter.

#	Case Name	Tentative
101	Stockstill vs. Interinsurance Exchange of The Automobile Club 26-01558281	Demurrer to Complaint FAC filed 07/29/2026 (ROA 38) - Demurrer is off calendar as MOOT
102	Johnston vs. Disneyland 25-01515207	1. Demurrer to First Amended Complaint Defendant, Walt Disney Parks and Resorts U.S., Inc. dba Disneyland ("Defendant"), moves for an order sustaining the demurrer to every cause of action alleged in the First Amended Complaint of Plaintiff, Jeffrey Johnston ("Plaintiff"). Defendant contends that the claim in the First Amended Complaint is barred by Privette v. Superior Court (1993) 5 Cal.4th 689 because Plaintiff was an employee of an independent contractor that was hired to perform work at Defendant's property, and that neither the retained control exception nor concealed hazard exception applies as there is no allegation that any act of Defendant